

District: Khagrachari

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 1481 of 2021

In the matter of :

Md. Abdul Jalil and another
... Petitioners

-Versus-

Chailapro Chowdhury
...Opposite-party

Mr. Kazi Obaidur Rahman, Advocate
...for the petitioners

Mr. Tapash Kumar Biswas, Advocate with
Mr. Pratikar Chakma, Advocate
...For the opposite-party

Heard on: 28.10.2024

Judgment on: 04.11.2024

Rule was issued on an application under section 115(1) of the Code of Civil Procedure calling upon the opposite party to show cause as to why the judgment and order dated 18.11.2020 passed by the District Judge, Khagrachari in Title Appeal No. 85 of 2006(86/2006) allowing the appeal setting aside the judgment and order dated 15.03.2006 of the Civil Judge and Deputy Commissioner, Khagrachari Hill District in Civil Suit No. 360 of 2000 and thereby sending back the suit on

remand to the trial Court for fresh trial should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The present opposite party as plaintiff filed Civil Suit (Title Suit) No. 36 of 2000 before the Civil Judge and Deputy Commissioner, Khagrachari Hill District and after hearing learned Judge of the Civil Court by his judgment and order dated 15.03.2006 dismissed the suit on a preliminary point relying upon an inspection report dated 23.05.2002 submitted by the Additional Deputy Commissioner (Revenue), Khagrachari Hill District holding that the plaintiff's claimed property and defendant's possessed property are not same.

Having been aggrieved by the aforesaid judgment and order dated 15.03.2006 passed by the Judge of the Civil Court of Khagrachari Hill District, the plaintiff filed Civil Appeal (Title Appeal) No. 85 of 2006 contending, *inter-alia*, that the plaintiff filed a written objection before the Judge of the Civil Court against the inspection report dated 23.05.2002 submitted by the Additional Deputy Commissioner (Revenue), Khagrachari Hill District, in spite of that and without taking into consideration the written objection of plaintiff learned Judge of the Civil Court illegally dismissed the suit relying solely upon the said inspection report dated 23.05.2002. It was further contended that in the written statement filed by the

defendant-respondent before the Judge of the Civil Court, it was not the case of defendant that the defendant possessing and enjoying the property of Government recorded under khas khatian No. 1, and the defendant even did not produce any piece of evidence before the trial Court in support of such fact, in spite of that learned Judge of the trial Court without taking evidence dismissed the suit on a preliminary point. Learned Judge of the appellate Court below (District Judge) after hearing by his judgment and order dated 18.11.2020 allowed the appeal on contest and sent back the suit on remand to the Court of Civil Judge of Khagrachari Hill District for holding a fresh trial after taking evidence from both the parties and also directed to allow them to take necessary steps for amendment of pleadings and to adduce evidence to substantiate their claim.

Being aggrieved by and dissatisfied with the aforesaid judgment and order dated 18.11.2020 passed by the District Judge, Khagrachari, the defendant-petitioner filed this revisional application and obtained the Rule.

For effective disposal of this Rule, it is not at all necessary to enter into detail facts.

Learned Advocate Mr. Kazi Obaidur Rahman for the petitioner submits that the trial Court dismissed the suit holding that the suit is not maintainable and in appeal the judgment and

order has been reversed against which the defendant-petitioner filed this revisional application. He next submits that learned District Judge failed to consider that the judgment of the Civil Court dismissing the suit relying upon an inspection report, wherefrom it transpires that the defendant possesses the government property recorded in khas khatian No. 1 and the plaintiff's property is different from the property possessed by the defendant. Thus, learned District Judge committed an error in the decision sending the case on remand.

On the other hand, Mr. Tapas Kumar Biswas, learned Advocate for the opposite-party submits that learned District Judge in his judgment found that the plaintiff in his plaint categorically asserted that in the year, 1984 the defendant entered illegally into the plaintiff's property in their absence and in the year 1991 in a 'Shalis' the Headman of the mouza directed the defendant to vacate plaintiff's property, but the defendant did not pay any heed to the said direction and thus, the plaintiff constrained to file the suit. He next submits that learned Judge of the Civil Court solely relaying upon an inspection report dated 23.05.2002 submitted by the Additional Deputy Commissioner (Revenue), Khagrachari Hill District dismissed the suit, although the plaintiff filed a written objection against the report, despite of the Civil Court Judge without allowing the plaintiff to examine his witness or to

adduce any document or giving any opportunity to cross-examine the Additional Deputy Commissioner dismissed the suit on a preliminary point solely relying upon the report. He further submits that learned Judge of the appellant Court below also found that in the written statement filed by the defendant, no where it is claimed that the defendant possesses the Government property recorded under khas khatian No. 1, in spite of that the Judge of the Civil Court illegally dismissed the suit travelled beyond the pleadings and as such learned District Judge by his judgment and order setting aside the judgment of the trial Court justly and legally considering the aforesaid aspect and sending it back to remand for a fresh trial upon taking evidence and observing other formalities.

Heard learned Advocates of both the parties, on perusal of the record as well as the Chittangong Hill Tracts Regulation, 1900 together with the Rules for the Administration of the Chittagong Hill Tracts.

I find substance in the submissions of learned Advocate for the opposite party and from the record it appears that the suit was dismissed by the Civil Judge on a preliminary point without giving any opportunity to the plaintiff to substantiate his objection against the report dated 23.05.2002 or to adduce any evidence and moreover, the defendant-petitioner shall not be prejudiced in any manner, if the suit is sent back on remand

for fresh trial, because the defendant will have ample opportunity to defend himself.

In the premise above, I do not find any merit in the Rule.

Accordingly, the Rule is discharged without any order as to cost.

The learned Judge of the Civil Court of Khagrachari Hill District is hereby directed to hear and dispose of the Civil Suit No. 36 of 2000 within 6(six) months after notifying both the parties and allowing them to take legal steps as per the observation and direction of judgment and order of the appellate Court below dated 18.11.2020 and learned Judge of the Civil Court is also directed to dispose of the suit positively within 6(six) months from receipt of this judgment and order without allowing any unnecessary adjournment.

Communicate the judgment and order at once to the Court concerned.